

25TRCV01948 25TRCV01948

County: los-angeles

Division: Civil Law and Motion

Department: E

Hearing date: 2026-07-20

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SBA%2CE%2C07%2F20%2F2026

Source SHA-256: 00e78f9382e7c3d5e126d7562b894f2dded162864424a5d68aaa656c9a4bd928

Case Number: 25TRCV01948 Hearing Date: July 20, 2026 Dept: E

Superior Court of California

County of Los Angeles

Southwest District

Torrance Dept. E

SARAH

HOUSTON, an individual, GORDON HOUSTON, an individual

Plaintiff,

Case No.:

25TRCV01948

vs.

[Tentative]

Sustained/overruled/granted/denied

PACIFIC

REPRODUCTIVE MEDICAL CENTER INC., a business entity, form unknown, RIFAAT

SALEM, M.D., an individual, and DOES1 to 100, inclusive,

Defendants.

Hearing

Date: July

20, 2026

Moving Parties: Defendants Pacific Reproductive Medical Center and Rifaat Salem, M.D.

Responding Party: Plaintiffs

Sarah Houston and Gordon Houston

HEARING: Demurrer with MTS

The Court considered the moving and
opposition papers.

RULING

The Court
overrules the Demurrer as to the second and third causes of action.

The Court sustains the
Demurrer as to the fifth cause of action without leave to amend.

The Court grants the
Motion to Strike as to the punitive damages with leave to amend.

The Court grants the
Motion to Strike as to prejudgment interest without leave to amend.

The Court denies the
Motion to Strike as to attorneys' fees as moot.

BACKGROUND

On June
16, 2025, Plaintiffs Sarah Houston and Gordon Houston filed the Complaint
against Defendants Pacific Reproductive Medical Center and Rifaat Salem, M.D.,
alleging causes of action for professional negligence, breach of contract, and conspiracy
to defraud.

On December 8, 2025,

Plaintiffs filed the FAC alleging causes of action for negligence, professional negligence, breach of contract, breach of the implied covenant of good faith and fair dealing, fraud, fraudulent concealment, negligent misrepresentation, bailment, conversion, trespass to chattels, and battery.

On March 3, 2026,

Plaintiffs filed the SAC alleging causes of action for professional negligence, fraud, fraudulent concealment, negligent misrepresentation, and breach of contract.

On June 1, 2026,

Defendants filed the Demurrer and Motion to Strike.

On July 6, 2026,

Plaintiffs filed the Opposition.

No Reply has been filed.

LEGAL STANDARD

A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.) "To survive a demurrer, the complaint need only allege facts sufficient to state a cause of action; each evidentiary fact that might eventually form part of the plaintiff's proof need not be alleged." (C.A. v. William S. Hart Union High School Dist. (2012)

53 Cal.4th 861, 872.) For the purpose of testing the sufficiency of the cause of action, the demurrer admits the truth of all material facts properly pleaded. (Aubry v. Tri-City Hospital Dist. (1992) 2 Cal.4th 962, 966-967.) A demurrer "does not admit contentions, deductions or conclusions of fact or law." (Daar v. Yellow Cab Co. (1967) 67 Cal.2d 695, 713.)

A pleading is uncertain if it is ambiguous or unintelligible. (Code Civ. Proc., § 430.10, subd. (f).) A demurrer for uncertainty may lie if the failure to label the parties and claims renders the complaint so confusing defendant cannot tell what he or she is supposed to respond to. (Williams v. Beechnut Nutrition Corp. (1986) 185 Cal.App.3d

135, 139, fn. 2.) However, “[a] demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (Khoury v. Maly’s of California, Inc. (1993) 14 Cal.App.4th 612, 616.)

DISCUSSION

Meet and confer

Before filing a demurrer, “the demurring party shall meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” (Code Civ. Proc., § 430.41, subd. (a).)

May 20, 2026, Defendant called Plaintiffs regarding the Demurrer but received no response. Therefore, the Court finds that Defendant has satisfied the meet and confer requirements.

Plaintiffs allege that Defendants provided IVF treatment and cryopreservation services for their embryos. They state they signed a “Declaration of Intent” outlining when the embryos could be destroyed, and later signed a “Consent to Destroy” in December 2018, but revoked that consent four days afterward. Plaintiffs claim the embryos were nonetheless wrongfully discarded despite the revocation. They further allege that they had enrolled in automatic payments for ongoing storage fees and later discovered they were repeatedly and incorrectly charged for cryopreservation services even after the embryos had been destroyed.

Defendants demur to the second, third, and fifth causes of action.

Cause
of Action 2 – Fraud

“The elements of fraud, which give rise to the tort action for deceit, are (1) a misrepresentation, (2) with knowledge of its falsity, (3) with the intent to induce another’s reliance on the misrepresentation, (4) justifiable reliance, and (5) resulting damage.” (Conroy v. Regents of Univ. of Cal. (2009) 45

Cal.4th 1244, 1255.) To state a cause of action for fraud, a plaintiff must allege facts that show "how, when, where, to whom, and by what means the representations were tendered." (Lazar v. Superior Court (1996) 12 Cal.4th 631, 645.) "Fraud must be pled specifically; general and conclusory allegations do not suffice." (Ibid.)

Defendant

contends fraud must be pleaded with specificity, identifying the names of persons making false representations, their authority to speak, to whom they spoke, what was said or written, and when. Defendant argues the complaint fails to meet that standard with respect to both Defendant Pacific Medical, as a corporation, and Defendant Dr. Salem, individually.

Defendant

further argues Plaintiffs cannot establish intent to deceive because Plaintiffs themselves admit they signed up for and consented to the automatic billing system that generated the allegedly fraudulent invoices, and that the overbilling is more consistent with negligence or inadvertence than intentional deception. Defendant also notes Plaintiffs admit they originally consented to the destruction of the embryos even if that consent was later allegedly revoked, which undermines any inference of intentional wrongdoing. Defendant additionally points to Plaintiffs' own allegation that Defendant Pacific Medical's staff later left voicemails admitting the embryos had been destroyed years earlier, which Defendant argues is inconsistent with a scheme of intentional deception.

On

the element of false representation, Defendant argues that billing statements and alleged verbal assurances that embryos were stored and safe are insufficiently pleaded as to knowledge of falsity, and that the allegation regarding employee Daisy Haith's statement that she would check with the lab leaves unresolved what she actually found, making it unclear whether any knowingly false statement was made. Defendant also argues that because the billing was on autopay, Plaintiffs established themselves, and Plaintiffs cannot establish the justifiable reliance necessary to sustain a fraud claim. Defendant concludes the demurrer to the fraud cause of action should be sustained without leave to amend.

In

opposition, Plaintiffs argue the fraud cause of action is adequately pleaded,

and that Defendant's intent argument fundamentally mischaracterizes the allegations of the second amended complaint.

Plaintiffs

contend the fraud claim does not rest on the destruction of the embryos themselves but on post-destruction conduct, specifically that after the consent to destroy was revoked and acknowledged, Defendants represented for years that the embryos remained stored and safe, continued billing Plaintiffs for storage after destruction had already occurred, provided explanations for billing irregularities, and repeatedly communicated that the embryos remained available. Plaintiffs argue these allegations concerning conduct occurring years after destruction independently support a fraud claim regardless of the original consent.

Plaintiffs

further argue that Defendant's contention that intent cannot be established misunderstands California law, which recognizes that fraudulent intent is rarely susceptible to direct proof and is ordinarily established through circumstantial evidence. Plaintiffs contend that the allegations of continued billing, repeated assurances, exclusive control of records, contradictory communications, and years-long concealment collectively support a reasonable inference of knowledge and intent sufficient to survive demurrer, and that knowledge, intent, motive, and state of mind are factual issues ordinarily reserved for the trier of fact.

Here,

most of the alleged misrepresentations occurred through an autopay system under which Plaintiffs were issued a billing statement showing proof of payment for their embryos in storage. (SAC ¶ 102.) The other alleged misrepresentations regard employees of Defendants stating that the embryos are safe or, in one instance, "that are records states that there is no record of your embryos being discarded." (SAC ¶ 105-106.) Furthermore, the SAC alleges that Defendants had actual knowledge of the destruction of the embryos as documented in their internal files. (SAC ¶ 112.) As for *Tarmann v. State Farm Mut. Auto. Ins. Co.* (1991) 2 Cal.App.4th 153, the SAC alleges that Dorothy LaEzza, Defendant PRC's billing manager, and Daisy Haith, another PRC employee, made these representations. (SAC ¶ 106-107.) Thus, Tarmann's requirements are fulfilled. (See *Tarmann*, *supra*, 2 Cal.App.4th 153, 863.)

Therefore, the Court overrules the Demurrer as to

the second cause of action.

Cause of Action 3 – Fraudulent Concealment

“[T]he

elements of an action for fraud and deceit based on concealment are: (1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage.” (Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC (2008) 162 Cal.App.4th 858, 868.)

In its ruling on the

Demurrer to the FAC, the Court found that the cause of action for fraudulent concealment was deficient as it lacked allegations of intentional concealment. However, as the Court has now found that Plaintiffs have alleged actual knowledge, this deficiency has been rectified. While Defendant now argues that the SAC lacks justifiable reliance because Plaintiffs consented to the destruction of their embryos, this consent was allegedly repealed. (SAC ¶ 30.)

Therefore, the Court overrules the Demurrer as to the fourth cause of action.

Cause

of action 5 – Breach of Contract

The elements of

breach of contract are (1) the existence of a contract; (2) the plaintiff's performance or a valid excuse for nonperformance; (3) the defendant's breach or anticipatory breach of the contract; and (4) resulting damage to the plaintiff. (Wall Street Network, Ltd. v. N. Y. Times Co. (2008) 164 Cal.App.4th 1171, 1178.)

Defendant first

argues the breach of contract claim is duplicative of the professional negligence cause of action because the gravamen of Plaintiffs' allegations is the negligent conduct of Defendant Pacific Medical's staff and Defendant Dr.

Salem's negligent supervision, which sounds in tort rather than contract. Defendant contends that where a claim is premised on the violation of a professional obligation owed in the rendering of medical care, it sounds in professional negligence regardless of how it is labeled. Defendant argues that even though Plaintiffs allege contractual violations such as billing for unperformed services and failure to notify Plaintiffs of changes in embryo care, the tort is the gravamen of the action, and the breach of contract claim cannot be maintained separately.

Defendant also

argues the breach of contract claim is fatally uncertain under Code of Civil Procedure section 430.10(g) because it cannot be ascertained from the SAC whether the contract at issue is written, oral, or implied by conduct.

Defendant notes Plaintiffs allege they entered into a single comprehensive written agreement for both IVF services and long-term cryopreservation, yet also allege that after the IVF cycle concluded in 2016, they entrusted Defendant Pacific Medical with ongoing cryopreservation pursuant to that same agreement, creating ambiguity as to whether one written agreement governed the entire relationship or whether separate subsequent oral, written, or implied agreements existed for the cryopreservation services. Defendant argues this internal inconsistency renders the breach of contract cause of action ambiguous and fatally uncertain.

“When a cause of

action is asserted against a health care provider on a legal theory other than medical malpractice, the courts must determine whether it is nevertheless based on the professional negligence of the health care provider so as to trigger MICRA.” (Smith v. Ben Bennett, Inc. (2005) 133 Cal.App.4th 1507, 1514.) “Where the plaintiff's claim is premised on the violation of a professional obligation owed in the rendering of a patient's medical care, treatment, or diagnoses, the claim sounds in professional negligence” (Gutierrez v. Tostado (2025) 18 Cal.5th 222, 238.)

Here, the SAC alleges

that the parties entered into a “single comprehensive contract” for both the provision of IVF medical service and long-term storage. (SAC ¶ 19.) The Court finds that Plaintiffs have alleged breaches of the contract unrelated to the performance of medical services, such as billing for services not performed and failing to notify Plaintiffs of any change in the embryos' care. However, a breach of contract claim in a medical negligence case containing elements of

both tort and contract law is “ex delicto” as the tort is the gravamen of the issue. (Williamson, supra, 67 Cal.App.2d 250, 251-252.) Thus, the current case sounds in tort and not in contract. Furthermore, as Plaintiffs have now had three attempts to plead a valid cause of action for breach of contract and failed to do so, the Court finds that the deficits are unlikely to be rectifiable.

Therefore, the Court overrules
the Demurrer as to the fifth cause of action without leave to amend.

Motion
to Strike

California law
authorizes a party's motion to strike a matter from an opposing party's pleading if it is irrelevant, false, or improper. (Code Civ. Proc., §§ 435; 436 subd. (a).) Motions may also target pleadings or parts of pleadings that are not filed or drawn in conformity with applicable laws, rules, or orders. (Code Civ. Proc., § 436 subd. (b).) A motion to strike is used to address defects that appear on the face of a pleading or from a judicially noticed matter but that are not grounds for a demurrer. (Pierson v Sharp Memorial Hospital (1989) 216 Cal.App.3d 340, 342; see also City & County of San Francisco v Strahlendorf (1992) 7 Cal.App.4th 1911, 1913 (motion may not be based on a party's declaration or factual representations made by counsel in the motion papers).) In particular, a motion to strike can be used to attack the entire pleading or any part thereof – in other words, a motion may target single words or phrases, unlike demurrers. (Warren v. Atchison, Topeka & Santa Fe Railway Co. (1971) 19 Cal.App.3d 24, 40.) California's policy of liberal construction applies to motions to strike. (Code Civ. Proc., § 452; see also Duffy v. Campbell (1967) 250 Cal.App.2d 662, 666 (noting that courts must resolve all reasonable doubts in favor of the pleading when considering a motion to strike).) The Code of Civil Procedure also authorizes the Court to act on its own initiative to strike matters, empowering the Court to enter orders striking matter “at any time in its discretion, and upon terms it deems proper.” (Code Civ. Proc., § 436.)

Punitive
Damages

“In

order to survive a motion to strike an allegation of punitive damages, the ultimate facts showing an entitlement to such relief must be pled by a plaintiff.” (Clauson v. Superior Court (1998) 67 Cal.App.4th 1253, 1255.) A request for punitive damages may be made pursuant to Civil Code section 3294 subdivision (a), which provides that “[i]n an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant.” (Civil Code § 3294 subd. (a).)

Under

the statute, malice is defined as “conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others,” and oppression is defined as “despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights.” (Code Civ. Proc. § 3294 subd. (c)(1), (c)(2).) Although not defined by the statute, despicable conduct refers to circumstances that are base, vile, or contemptible. (College Hospital, Inc. v. Superior Court (1994) 8 Cal.4th 704, 725.) Also, “[u]nder the statute, malice does not require actual intent to harm...Conscious disregard for the safety of another may be sufficient where the defendant is aware of the probable dangerous consequences of his or her conduct and he or she willfully fails to avoid such consequences” (Pfeifer v. John Crane, Inc. (2013) 220 Cal.App.4th 1270, 1299.)

“In

any action for damages arising out of the professional negligence of a health care provider, no claim for punitive damages shall be included in a complaint or other pleading unless the court enters an order allowing an amended pleading that includes a claim for punitive damages to be filed. The court may allow the filing of an amended pleading claiming punitive damages on a motion by the party seeking the amended pleading and on the basis of the supporting and opposing affidavits presented that the plaintiff has established that there is a substantial probability that the plaintiff will prevail on the claim pursuant to Section 3294 of the Civil Code.” (Code Civ Proc. § 425.13) Furthermore, intentional torts such as fraud may arise out of professional negligence. (Central Pathology Service Medical Clinic, Inc. v. Superior Court (1992) 3 Cal.4th 181, 192.)

Defendant

argues that the request for punitive damages must be struck under Code of Civil Procedure Section 425.13 as Plaintiffs have not moved for an order allowing for the seeking of punitive damages.

Here,

the Court finds that all causes of action arise out of the alleged professional negligence of a health care provider because the gravamen of the SAC is the destruction of Plaintiff's embryos. Thus, as Plaintiffs have not moved for an order allowing for a claim of punitive damages, the Court must strike the request for punitive damages. However, as the defect can be rectified, leave to amend must be granted.

Therefore,

the Court strikes the request for punitive damages without leave to amend.

Prejudgment Interest

Defendants request that the Court strike Plaintiffs' request for prejudgment interest. Here, as the amount in dispute is not an ascertainable sum, the request for prejudgment interest is improper. (See, *Chesapeake Industries, Inc. v. Togova Enterprises, Inc.* (1983) 149 Cal.App.3d 901, 906.) Furthermore, as Plaintiffs have now had three attempts to plead a prejudgment interest and failed to do so, the Court finds that the deficits are unlikely to be rectifiable.

Therefore,

the Court strikes the request for prejudgment interest without leave to amend.

Attorney's fees

"Except as attorney's fees are specifically provided for by statute, the measure and mode of compensation of attorneys and counselors at law is left to the agreement, express or implied, of the parties; but parties to actions or proceedings are entitled to their costs, as hereinafter provided." (Code Civ. Proc., § 1021.)

Plaintiffs have withdrawn their request for attorneys' fees.

Therefore, the Court denies the Motion to Strike as to the attorneys' fees as moot.